

25STLC07863 25STLC07863

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-06-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C25%2C06%2F25%2F2026

Source SHA-256: 42bc33ff87efe86792b1565d9dbd6eedd4cf8a93b8f0af86cb4e898c1b4239c1

Case Number: 25STLC07863 Hearing Date: June 25, 2026 Dept: 25

HEARING

DATE: Thurs., June 25, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: Mercury Insurance Company v. Hicks COMP FILED: 12-12-23

CASE NUMBER: 23STLC07863

NOTICE: OK

PROCEEDINGS: MOTION FOR ORDER SETTING ASIDE DISMISSAL AND
ENTERING JUDGMENT PURSUANT TO STIPULATION

MOVING PARTY: Plaintiff
Mercury Insurance Company

RESP. PARTY: None

MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION

(CCP § 664.6)

TENTATIVE RULING:

The Court GRANTS IN PART the motion to
enter judgment pursuant to the stipulation.

The dismissal entered on February 28,
2024, is hereby SET ASIDE AND VACATED.

Judgement is entered in the reduced amount of \$6,754.44, reflecting \$6,854.44 in principal less \$100.00 for payments received.

Mercury
is to give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of June 18,
2026 [] Late [X] None

REPLY: None filed as
of June 18, 2026 [] Late [X]
None

ANALYSIS:

Mercury
Insurance Company filed a subrogation action against Sana Hicks. The parties settled and entered a stipulation that required Hicks to pay \$6,854.44 at \$100.00 per month. The Court dismissed this action without prejudice and retained jurisdiction to enforce the stipulation pursuant to Code of Civil Procedure section 664.6. Hicks subsequently breached the agreement. Mercury now seeks judgment against Hicks pursuant to the stipulation. Hicks has not opposed Mercury's motion.

Code of
Civil Procedure section 664.6, subdivision (a), allows a court to enter

judgment pursuant to the terms of a written, signed settlement. If the parties agree, a court may dismiss the case without prejudice and retain jurisdiction to enforce the settlement until full performance is made. (Ibid.)

The stipulation between Mercury and Hicks is valid and enforceable under Code of Civil Procedure section 664.6. In the event of breach, the stipulation provides for the entry of judgment in the principal sum—\$6,854.44—minus any payments Hicks made before breaching. The stipulation also allows for interest at 10 percent per year from the date of the complaint's filing, attorney fees pursuant to the Local Rule, and costs.

Mercury requests a judgment of \$8,614.84 against Hicks, comprising \$6,854.44 in principal, \$1,635.40 in interest, \$225.00 in costs, and \$0.00 in attorney fees—minus \$100.00 for payments received before Hicks's breach. However, Mercury provides no explanation of how the amounts for interest and costs were calculated. The Court therefore declines to award them.

Accordingly, the Court GRANTS IN PART the motion and sets aside and vacates the dismissal entered on February 28, 2024, and enters judgment pursuant to the stipulation in the reduced amount of \$6,754.44, reflecting \$6,854.44 in principal less \$100.00 for payments received.

Mercury is to submit a proposed judgment reflecting these terms within 10 days of this order, and to give notice.